

Ross on Crime  
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Journalist Privilege  
Last Review: 20/09/2023

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# Journalist Privilege

## [10.800] Journalist Privilege

A number of Australian jurisdictions have privilege that apply to protect the identity of sources to journalists.

Sections 126J and 126K in the Commonwealth UEA create a privilege for journalists. The same privilege exists in New South Wales and the Australian Capital Territory (ss 126J to 126L UEA (New South Wales and Australian Capital Territory) and Victoria (ss 126J to 126K UEA (Vic)). In Tasmania there is a broader professional confidential relationship privilege in relation to “protected confidences” (ss 126A to 126F UEA (Tas)), which applies to journalists.

The privilege is not absolute and can be overridden in a number of circumstances. For examples, where it was rejected see: *Liu v The Age Company Ltd* (2012) 257 FLR 360; [2012] NSWSC 12 and In *Ashby v Commonwealth (No 2)* (2012) 203 FCR 440; [2012] FCA 766.

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